

unique credentials are linked to the agreement. While Ms. Griffiths mentions creation of an e-sign ID number, this still has not been established by a preponderance of the evidence to link plaintiff to the presented signature. (Griffiths Decl., ¶ 15.)

The court intends to deny the motion to compel arbitration. In light of the foregoing, the court will not address the arguments of unconscionability at this time.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 9-13-26
(Judge's initials) (Date)

(20)

Tentative Ruling

Re: ***Estate of Jae-Luv Smith v. County of Fresno et al.***
Superior Court Case No. 22CECG00120

Hearing Date: September 15, 2026 (Dept. 502)

Motion: By County Defendants to Continue Trial or Stay Action
By Plaintiffs to Compel Further Response to Sixth Set of Requests for Production

Tentative Ruling:

To deny without prejudice the request to stay the action. Trial has already been continued by stipulation of the parties.

To grant plaintiffs' motion to compel. Within 20 days of service of the order by the clerk, the County of Fresno shall produce County of Fresno Department of Social Services Quality Assurance report requested in Request for Production Set Six, no. 36, and shall served a further verified response with a statement of compliance, and omitting all objections. (Code Civ. Proc., § 2031.310.)

Explanation:

The court has signed the stipulation and proposed order vacating the current trial date. The motion to continue trial is therefore moot. It is not clear if the County defendants (County of Fresno, Richard Plantz and Julie Donnelly) still seek a stay, which was specified as alternative relief to trial continuance. Discovery in this civil action has been hampered by the criminal prosecution of defendant Patrick Johnson for the alleged conduct and actions that form the basis of plaintiffs' claims. It is clear, as the parties agree, that the case is not yet ready to proceed to trial, and that trial must be continued. The court signed the stipulation and proposed order, vacating the current trial date. There does not appear to be an actual need to stay the action at this time, with the upcoming trial date being vacated. The parties should proceed with discovery and trial preparation, though the court may be open to staying proceedings in the future if the criminal case is not nearing completion and the parties have completed the discovery they need in this action. The request for a stay is therefore denied without prejudice to a future motion to stay.

Plaintiffs propounded on the County of Fresno Request For Production Set Six. Request no. 36, seeks production of a County of Fresno Department of Social Services Quality Assurance report. The County has refused to produce the report pursuant to various privileges and protections, few of which were asserted in its initial response. Any objections not asserted in the initial response are waived. (See *Scottscale Ins. Co. v. Superior Court* (1997) 59 Cal.App.4th 263, 273.) And the County has the burden of justifying its objections. (See *Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221; *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.) The only objection both raised in the

initial response and clearly addressed in opposition to the motion to compel is the official information privilege. All other objections are deemed waived.

Evidence Code section 1040 provides in pertinent part,

(a) As used in this section, "official information" means information acquired in confidence by a public employee in the course of his or her duty and not open, or officially disclosed, to the public prior to the time the claim of privilege is made.

(b) A public entity has a privilege to refuse to disclose official information, and to prevent another from disclosing official information, if the privilege is claimed by a person authorized by the public entity to do so and either of the following apply:

(1) Disclosure is forbidden by an act of the Congress of the United States or a statute of this state.

(2) Disclosure of the information is against the public interest because there is a necessity for preserving the confidentiality of the information that outweighs the necessity for disclosure in the interest of justice; but no privilege may be claimed under this paragraph if any person authorized to do so has consented that the information be disclosed in the proceeding. In determining whether disclosure of the information is against the public interest, the interest of the public entity as a party in the outcome of the proceeding may not be considered.

Similarly, the deliberative process privilege permits nondisclosure if "on the facts of the particular case the public interest served by not disclosing the record clearly outweighs the public interest served by disclosure of the record." (Gov. Code, § 792.000.)

The County does not contend that disclosure is forbidden by an act of Congress or a statute of this state (Evid. Code, § 1040, subd. (b)(1)). Thus, the question is whether the disclosure is against the public interest. The County maintains that the purpose of the report was to conduct an internal evaluation of the County's systems, an internal evaluation of the functioning of those systems and the protocols followed (or not). Because the Quality Assurance report is part of the County's deliberative process, the County contends it is subject to the official information privilege.

However, the court agrees with plaintiffs that the public has a strong interest in the work of social services agencies who are entrusted with the welfare of vulnerable children, including children. Disclosure is in the interest of justice, since the substance of this lawsuit focuses on injuries sustained by plaintiffs as a result of their interactions with the Department of Social Services. Accordingly, the court intends to grant the motion and order the County to produce the Quality Assurance report, and serve a further verified response to demand no. 36 with a statement of compliance, and omitting all objections.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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